



Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

ATS GRAND STAND SECTOR -99A ATS joint affidavit-cum-undertaking dated 08.06.2026 before DTCP

3 messages

Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

14 June 2026 at 12:52

To: stp4.gurugram.tcp@gmail.com, tcpharyana7@gmail.com, rera@hareraggm.gov.in, Rajeev Gupta <rajeev.gupta@homekraft.in>

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Covering Note to Government Authorities — Conditional Approval and Buyer Safeguards**Date:** 14.06.2026**From:** Mr. Vijyant Agarwal (Allottee / Complainant / Decree-holder)**Co-allottee:** Mrs. Vineeta Agarwal**Unit:** Unit No. 3051, Tower No. 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram**Matter:** Complaint No. **4463 of 2021** — *Vijyant Agarwal & Anr. v. ATS Realworth Pvt. Ltd.***Order sought to be executed:** HARERA order dated **18.04.2024**, as rectified under Section 39 on **08.08.2024****To:**

1. The Secretary / Competent Authority, **Haryana Real Estate Regulatory Authority (HARERA)**, Regional Office, Gurugram — Email: rera@hareraggm.gov.in
2. The Secretary / Competent Authority, **Haryana Real Estate Regulatory Authority (HARERA)**, State Headquarters, Panchkula — Email: hrera-hry@gov.in
3. The Director, **Department of Town & Country Planning (DTCP)**, Haryana, Chandigarh — Email: tcpharyana7@gmail.com
4. The Competent Authority, **STP Section-4, Gurugram**, Department of Town & Country Planning (DTCP), Haryana — Email: stp4.gurugram.tcp@gmail.com

CC:

1. M/s **ATS Realworth Pvt. Ltd.** (existing promoter / respondent / judgment-debtor)
 2. M/s **Hasta Infrastructure Pvt. Ltd.** (ATS Group)
 3. M/s **Homekraft Infra Pvt. Ltd.** (proposed / new developer)
 4. The Authorised Signatory, **ATS** — ATS Tower, Plot No. 16, Sector-135, Noida; and Project Site Office, ATS Grandstand, Sector 99A, Gurugram
-

Subject

Covering note regarding objection to ATS joint affidavit-cum-undertaking dated 08.06.2026 before DTCP; request that any approval by DTCP / HARERA / concerned authority relating to revised plan or change of developer be made strictly conditional on execution of HARERA order dated 18.04.2024 and safeguards of buyer/allottee interest — with notice of further legal and administrative remedies if approval is granted without such safeguards.

Respected Sir/Madam,

1. I, **Mr. Vijyant Agarwal**, allottee / complainant / decree-holder in respect of **Unit No. 3051, Tower No. 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram**, along with co-allottee **Mrs. Vineeta Agarwal**, most respectfully submit this covering note before the concerned government authorities.
2. A binding HARERA order dated **18.04.2024** was passed in Complaint No. **4463 of 2021** in my favour and that of my co-allottee. The said order was rectified under **Section 39** on **08.08.2024**. Execution proceedings filed by me are **pending**. Despite expiry of the 30-day and 90-day compliance periods under the said order, full compliance has not been made.
3. It has come to my notice that M/s **ATS Realworth Pvt. Ltd., Hasta Infrastructure Pvt. Ltd., and Homekraft Infra Pvt. Ltd.** have tendered a joint **affidavit-cum-undertaking dated 08.06.2026** (notarised **11.06.2026**) before **DTCP** in connection with revised building plan / change of developer. In my respectful submission, the said affidavit is only a **generic regulatory undertaking** and is **not in compliance** of the HARERA order dated **18.04.2024**.
4. I am enclosing a detailed **Gap Analysis / Objection** (Gap_Affidavit_080626_Analysis_ATS_DTCP_Unit_3051) showing, inter alia, that the impugned affidavit:
 - does not confirm **direct payment of pre-EMI to the financial institution** as directed by the HARERA order;

- contains a harmful reservation of “**subject to finality in pending appeal, if any**”;
- does not disclose escrow, possession, construction, and other material compliance matters;
- was filed before **DTCP**, and not as proof of compliance in pending **HARERA execution**.

5. I therefore most respectfully request that **before granting, recognising, acting upon, or allowing any effect to any approval, permission, endorsement, registration amendment, change-of-developer recognition, revised-plan recognition, or other regulatory benefit** relating to the project **ATS Grandstand, Sector 99A, Gurugram**, the concerned authorities may be pleased to ensure that:

1. such approval remains **strictly conditional** on **prior full execution** of the HARERA order dated **18.04.2024** in Complaint No. **4463 of 2021**;
2. the **buyer / allottee interest is fully safeguarded**, including rights under the BBA, direct pre-EMI payment to the financial institution, lawful possession, escrow disclosure, and protection against revised-plan / change-of-developer prejudice;
3. no approval is treated as waiver, substitution, or satisfaction of the executable HARERA order;
4. no generic affidavit before DTCP is treated as compliance of the HARERA order;
5. a **speaking and reasoned order** is passed after considering the pending execution and the allottee’s objection.

6. **Important notice:** If **DTCP, HARERA**, or any other concerned government authority grants, recognises, or allows effect to any such approval **without first ensuring execution of the HARERA order dated 18.04.2024 and without adequate safeguards of buyer / allottee interest**, I shall be constrained to avail **all remedies available in law**, and I expressly reserve my right to file appropriate complaints / proceedings before:

- the **Chief Minister’s Grievance Portal / CM Window** and other competent administrative grievance channels, as permissible in law;
- the **Enforcement Directorate (ED)**, if facts so warrant and as permissible in law;
- the **Police / Economic Offences Wing / other investigating authorities**, if facts so warrant and as permissible in law;
- the **Hon’ble High Court of Punjab and Haryana, Chandigarh**, including writ, execution, contempt, and other appropriate proceedings;
- **HARERA / RERA appellate and execution forums**, and any other competent authority,
- **strictly in accordance with the applicable rules, laws, and facts of the case**, without waiving any existing rights, claims, or pending proceedings.

7. This notice is issued **without prejudice** to my pending execution proceedings, objections already filed, and all rights under the BBA, the Real Estate (Regulation and Development) Act, 2016, and other applicable laws. Nothing herein shall be treated as waiver, acquiescence, consent, or acceptance of any revised plan, change of developer, or alleged compliance by **ATS / Hasta / Homekraft**.

8. It is therefore prayed that my objection, gap analysis, and this covering note be taken on record and that no administrative or regulatory benefit be granted to the promoter / developer in a manner prejudicial to my crystallised rights unless the HARERA order is first executed and buyer interest is duly safeguarded.

Yours faithfully,

Mr. Vijyant Agarwal

Allottee / Complainant / Decree-holder

Unit No. 3051, Tower No. 03, Type-D

ATS Grandstand Phase-I, Sector 99A, Gurugram

Mobile no.-9899308574

Mrs. Vineeta Agarwal

Co-allottee

Place: New Delhi

Date: 14.06.2026

Strengthened Gap Analysis / Objection

ATS Joint Affidavit-cum-Undertaking before DTCP dated 08.06.2026

Unit No. 3051, Tower No. 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram

Matter: Complaint No. **4463 of 2021** — *Vijyant Agarwal & Anr. v. ATS Realworth Pvt. Ltd.*

Applicant / Decree-holder: Mr. Vijyant Agarwal

Co-allottee: Mrs. Vineeta Agarwal

Order sought to be executed: HARERA order dated **18.04.2024**, as rectified under Section 39 on **08.08.2024**

Impugned document: Joint Affidavit-cum-Undertaking dated **08.06.2026**, notarised on **11.06.2026**, allegedly tendered before DTCP in connection with revised building plan / change of developer

Prepared for: Objection / additional submission in pending execution and before competent authorities

Date: 14.06.2026

Place: New Delhi

Subject

Objection and gap analysis showing that the ATS/Hasta/Homekraft joint affidavit-cum-undertaking dated 08.06.2026 is only a generic regulatory undertaking before DTCP, and is neither compliance nor substantial compliance of the HARERA order dated 18.04.2024 in Complaint No. 4463 of 2021.

1. Core objection in brief

1.1. The impugned affidavit is projected as if it protects the rights of the decree-holder/allottee. In substance, however, it merely contains broad, future-oriented, non-specific assurances before DTCP. It does not contain any unit-specific compliance, payment proof, possession timeline, construction-status disclosure, escrow disclosure, or binding execution undertaking in favour of Unit No. **3051**, Tower No. **03**.

1.2. The affidavit is not filed as a compliance affidavit in the pending HARERA execution. It is filed before DTCP for obtaining or supporting regulatory benefits relating to revised plans / change of developer. Therefore, it cannot be treated as compliance with the binding HARERA order dated **18.04.2024**.

1.3. The affidavit is materially deficient because it omits key facts already recorded in **sections 3 and 4** below, including the expired compliance periods, pending execution, payment and disclosure defaults, and the absence of a binding possession plan.

1.4. The affidavit further contains a reservation that compliance is subject to “**attainment of finality in pending appeal, if any**” — see **section 4.1** below.

1.5. The affidavit, therefore, should be rejected as compliance. At best, it may be treated as an admission that ATS Realworth Pvt. Ltd., Hasta Infrastructure Pvt. Ltd., and Homekraft Infra Pvt. Ltd. are aware of the decree-holder’s rights but are seeking regulatory advantage without first executing the HARERA order in full.

2. What the impugned affidavit appears to say

The impugned affidavit, as tendered before DTCP, broadly states that:

Table No. 1

S. No.	Broad statement in affidavit	Why it is insufficient
1.	Decree-holder rights under BBA and HARERA/HRERA orders shall remain protected	No unit-specific details, no proof, no compliance chart, no payment statement
2.	Pre-EMI shall be paid in a time-bound manner till offer of possession	Does not undertake or confirm direct payment of pre-EMI to the financial institution as required by the HARERA order dated 18.04.2024
3.	Hasta and Homekraft shall jointly and severally honour commitments	No execution mechanism, no bank mandate, no timeline, no penalty for default

S. No.	Broad statement in affidavit	Why it is insufficient
4.	Revised building plans / change of developer shall not dilute allottee rights	No technical impact report, no BBA-compliance chart, no Section 14 consent analysis, no Unit 3051 impact disclosure
5.	Nothing material has been concealed	Material facts of default, execution, payment status, escrow status, and possession delay are not disclosed

The above statements are general assurances, not enforceable compliance. A decree-holder cannot be asked to accept such broad language in substitution of actual execution of a judicial/quasi-judicial order.

3. Chronology deliberately absent from the affidavit

The following chronology is central to the allottee's rights but is absent from the impugned affidavit:

Table No. 2

S. No.	Date	Event	Legal / factual significance
1.	18.04.2024	HARERA order passed in Complaint No. 4463 of 2021	Binding directions issued in favour of the complainants/decreed-holders
2.	18.05.2024 approx.	30-day period from order expired	Deadline for statutory/order-based disclosures such as CC/OC status, possession date, and escrow details expired
3.	17.07.2024 approx.	90-day period from order expired	Full compliance period expired; non-compliance became actionable
4.	08.08.2024	Section 39 rectification allowed	Clarified/confirmed booking amount and bank-funded component relevant to pre-EMI liability
5.	October 2024	Execution proceedings filed by allottee	Demonstrates continuing default and pending enforcement
6.	04.05.2026	DTCP revised plan approval / ZP-938-II referred	Regulatory benefit sought after

S. No.	Date	Event	Legal / factual significance
			prolonged non-compliance
7.	17.05.2026	Allottee representation / objection	Individual objection raised by Unit 3051 allottee
8.	May 2026	ATS reply to allottee	ATS allegedly treated HARERA compliance as separate and projected possession up to 30.06.2031
9.	08.06.2026	Impugned affidavit made	Generic undertaking without compliance proof
10.	11.06.2026	Notarisation / attestation	Certified true copy attested by Notary

Material omission: The affidavit does not disclose that the HARERA order had already remained unexecuted for nearly two years before ATS/Hasta/Homekraft approached DTCP with this generic affidavit.

4. Specific deficiencies in the impugned affidavit

4.1. Harmful reservation: “subject to finality in pending appeal, if any”

The affidavit’s reference to compliance being subject to “**attainment of finality in pending appeal, if any**” is the most serious weakness.

This clause is objectionable because:

- it attempts to make a binding and executable order conditional;
- it may be used by ATS/Hasta/Homekraft to postpone payment until appeal proceedings are concluded;
- it contradicts the pendency of execution proceedings;
- it is inconsistent with the decree-holder’s crystallised rights;
- it creates ambiguity where the affidavit should have given unconditional assurance.

Necessary correction: Any affidavit relied upon before DTCP/HARERA must state that the HARERA order is **presently executable** unless specifically stayed by a competent forum, and that no appeal, if any, shall operate as a stay unless a specific stay order is produced.

4.2. No identification of the decree-holder, unit, complaint, or order

The affidavit uses generic terminology such as “**Decree Holder(s)**” but does not specifically identify:

- Mr. Vijyant Agarwal;
- Mrs. Vineeta Agarwal;
- Unit No. 3051, Tower No. 03, Type-D;

- ATS Grandstand Phase-I, Sector 99A, Gurugram;
- Complaint No. **4463 of 2021**;
- HARERA order dated **18.04.2024**;
- Section 39 rectification order dated **08.08.2024**;
- the pending execution proceedings.

Consequence: A generic affidavit cannot be used to defeat, dilute, postpone, or satisfy a unit-specific executable order.

4.3. No undertaking of direct pre-EMI payment to the financial institution

The HARERA order dated **18.04.2024** directs that pre-EMI/EMI shall be paid **directly to the financial institution** till offer of possession. The impugned affidavit merely states that pre-EMI shall be paid in a “time-bound manner” but does not undertake or confirm such **direct payment to the financial institution** as required by the RERA order.

Consequence: A vague promise of “time-bound” pre-EMI payment does not satisfy the binding direction of **direct payment to the financial institution** under the HARERA order.

4.4. No definite possession date; no rejection of the 2031 extension

The allottee’s case is that the adjudicated / contractual possession timeline has already expired, and the due date is **30.06.2023**. ATS’s alleged revised projection of **30.06.2031** amounts to an unilateral eight-year extension.

The affidavit does not:

- admit the original/adjudicated due date of **30.06.2023**;
- explain the delay from 2023 to 2026;
- reject the unilateral extension to **30.06.2031**;
- give a legally binding possession date for Unit No. 3051;
- give a tower-wise completion schedule for Tower No. 03;
- undertake that paper possession shall not stop pre-EMI/delay liability;
- undertake that possession shall mean lawful physical possession after OC/CC, essential services, fire safety, lift, water, electricity, road access, parking, and common-area readiness.

Consequence: The affidavit gives no meaningful protection against further indefinite delay.

4.5. No escrow-account and fund-utilisation disclosure

The affidavit does not give:

- project escrow account number;
- bank name and branch;

- credit and debit statement;
- amount collected from allottees;
- amount used for construction;
- CA certificate;
- engineer certificate;
- architect certificate;
- project funding plan;
- fund requirement for Tower No. 03;
- timeline for fund deployment.

Consequence: The affidavit does not satisfy disclosure obligations and does not show whether the project has the financial capacity to deliver possession.

4.6. No construction-status disclosure for existing allottees / project generally

The affidavit is silent on the overall construction progress of the project, including stage-wise completion status, essential services, and expected possession timeline for existing allottees.

Consequence: Without basic project-wide construction disclosure, the affidavit cannot be treated as a meaningful compliance document for existing allottees.

4.7. Revised plan impact on Unit No. 3051 is not addressed

The affidavit does not address the impact of the revised plan on the allottee's unit, tower, amenities, parking, density, green area, loading, fire safety, traffic, open space, and quality of life.

ATS's own comparative materials, as understood from the allottee's record, indicate material changes such as:

Table No. 3

S. No.	Item	Earlier position	Revised position	Concern
1.	Total main units	522	734	Increased density
2.	ECS parking	999	957	Reduced parking despite higher unit count
3.	Open / green area	14345.86 sqm	10934.25 sqm	Reduced open area

4.8. No unconditional joint and several liability mechanism

Although the affidavit uses language of joint and several responsibilities, it does not create an operational mechanism for enforcement.

It should have stated:

- ATS Realworth Pvt. Ltd., Hasta Infrastructure Pvt. Ltd., and Homekraft Infra Pvt. Ltd. shall be jointly and severally liable for all monetary and non-monetary directions;
- the decree-holder may execute against any or all of them;
- no inter se arrangement between the companies shall prejudice the allottee;
- change of developer shall not require the allottee to start fresh proceedings;
- all three entities shall submit to HARERA execution jurisdiction;
- all three entities shall provide authorised signatories and board authorisations.

Consequence: The present language is broad but not operationally enforceable.

4.9. Procedural and drafting defects

Table No. 4

S. No.	Defect	Concern
1.	Wrong forum	Affidavit is before DTCP, not filed as compliance in HARERA execution
2.	Broken numbering	Paragraph sequence appears incomplete / defective
3.	-	-
4.	Duplicate / unclear deponent description	Shivam Wadhwa appears in multiple capacities; authority should be proved
5.	No board authorisation	No proof of authority of deponents attached
6.	No service on decree-holder	No proof that the affidavit was served on the present allottee before being relied upon

5. Why this affidavit cannot be treated as compliance

5.1. Compliance requires performance, not promise.

A party cannot satisfy a binding order merely by stating that it will protect rights in future. Compliance must be shown through proof of payment, proof of disclosure, proof of construction status, proof of escrow records, and a definite possession plan.

5.2. A regulatory affidavit cannot substitute execution.

DTCP proceedings relating to revised building plan / change of developer do not replace HARERA execution proceedings. The decree-holder's executable rights cannot be displaced by a document filed before another authority for a different purpose.

6. Suggested objections for filing

The applicant/deGREE-holder respectfully adopts and reiterates the objections recorded in **sections 3, 4 and 5** above, and in addition submits as follows:

1. The affidavit does not state that paper possession or incomplete possession shall not terminate pre-EMI / EMI / delay-compensation liability.
 2. Therefore, the affidavit should be rejected as compliance and the respondents should be directed to file a proper compliance affidavit supported by records.
-

7. Directions sought

It is respectfully prayed that the competent authority / executing authority may be pleased to:

1. **Reject** the joint affidavit-cum-undertaking dated **08.06.2026** as sufficient or substantial compliance of the HARERA order dated **18.04.2024** in Complaint No. **4463 of 2021**.
2. **Direct** ATS Realworth Pvt. Ltd., Hasta Infrastructure Pvt. Ltd., and Homekraft Infra Pvt. Ltd., jointly and severally, to file a **unit-specific compliance affidavit** for Unit No. **3051**, Tower No. **03**, within **7 days**, supported by documentary proof.
3. **Direct** the respondents to disclose and file:
 - direct bank-payment arrangement till lawful possession;
 - escrow account statement and fund utilisation record;
 - Tower No. 03 / Unit No. 3051 construction-status certificate;
 - date-wise possession milestone plan;
 - revised-plan comparison affecting Unit No. 3051;
 - status of appeal and any stay order, if any.
4. **Record** that any DTCP / RERA permission relating to revised plan, change of developer, COD, licence benefit, registration amendment, or other regulatory benefit shall remain strictly subject to prior and full execution of the HARERA order dated **18.04.2024** and shall not prejudice the allottee's vested rights.
5. **Declare / record** that the phrase "**subject to finality in pending appeal, if any**" shall not defer or suspend compliance unless a specific stay order from a competent appellate forum is produced.
6. **Direct** that no deemed consent, waiver, acquiescence, or acceptance shall be inferred against the allottee on the basis of public notice, website upload, silence, general intimation, or a generic affidavit.
7. **Direct** that no extra burden, additional charge, adverse layout change, reduced amenity, reduced parking right, delayed possession, or inferior specification shall be imposed upon the allottee due to revised plan / change of developer.
8. **Direct** the respondents to continue all pre-EMI/EMI and delay-related liabilities until lawful physical possession is delivered with OC/CC, essential services, parking, access, safety approvals, and all BBA/HARERA-compliant facilities.
9. **Initiate** appropriate execution, recovery, and penal consequences for continued non-compliance.
10. **Pass** any other order necessary to protect and enforce the decree-holder's crystallised rights.

8. Compliance matrix for annexure / hearing use

Table No. 5

S. No.	Requirement / issue	Required for true compliance	Position in impugned DTCP affidavit
1.	Identifies Complaint No. 4463/2021	Yes	No
2.	Identifies Unit No. 3051 / Tower No. 03	Yes	No
3.	Identifies allottee and co-allottee	Yes	No
4.	Refers to HARERA order dated 18.04.2024	Yes	No / not specific
5.	Refers to Section 39 order dated 08.08.2024	Yes	No
6.	Discloses pending execution	Yes	No
7.	Admits 30-day / 90-day default	Yes	No
8.	Provides direct-payment mechanism	Yes	No
9.	Provides physical possession date	Yes	No
10.	Provides escrow account statement	Yes	No
11.	Provides construction / project progress disclosure	Yes	No
12.	Provides revised-plan impact disclosure	Yes	No
13.	Confirms no extra charges	Yes	No
14.	Confirms unconditional executability	Yes	No; subject to finality in appeal
15.	Provides joint and several enforcement mechanism	Yes	Inadequate / generic

S. No.	Requirement / issue	Required for true compliance	Position in impugned DTCP affidavit
16.	Provides timeline and consequences for breach	Yes	No

2 attachments

-  **affidavit_by_ATS.pdf**
497K
-  **9.ORDER APRIL 2024 RERA ATS (1) (1).pdf**
1235K

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14 June 2026 at 12:52



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